
Appeal Decision

Site visit made on 18 August 2026

by **P Barton BA (Hons) MA MRTPI**

an Inspector appointed by the Secretary of State

Decision date: 07 September 2026

Appeal Ref: 6011209

Land east of Lichfield Road, Little Haywood, Stafford ST18 0FH

- The appeal is made under section 78 of the Town and Country Planning Act 1990 (as amended) against a refusal to grant planning permission.
 - The appeal is made by Miss Kate Perry against the decision of Stafford Borough Council.
 - The application Ref is 25/41603/FUL.
 - The development proposed is change of use to dog walking field and associated works.
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Decision

1. The appeal is dismissed.

Preliminary Matters

2. A new version of the National Planning Policy Framework (the Framework) was published on 17 August 2026. The policy emphasis of the parts of the Framework most relevant to this appeal have not changed. As a result, I have not sought comments on the new version of the Framework, and I am satisfied that no party's interests have been prejudiced by taking this approach.
3. The application form indicates that the development started on 1 July 2025. However, I have considered the appeal based on the proposed plans before me, rather than anything that has been carried out on site.

Main Issue

4. The main issue is the effect of the proposed development on highway safety.

Reasons

5. Access to the field and the associated parking and turning area is via an existing access point off the A51 Lichfield Road. There is no dispute between the parties in relation to the width dimensions of this access, as indicated on the submitted plans. On the basis of the evidence before me and from my own observations, I am satisfied that 2 vehicles can be positioned alongside each other on this access, within the kerbstones, before it reduces to a width that can only accommodate a single vehicle.
6. However, due to the extent of the width and radii of the access, a vehicle entering the site off the A51 would need to undertake this manoeuvre with particular care if there was a vehicle leaving the site at the same time. It would also require the vehicle exiting the site to be fully positioned to the correct side of the access, as shown on the submitted drawings. If a vehicle were to exit the site in a position that is not immediately adjacent to that side of the access, any vehicle wishing to enter

the site would need to wait in the carriageway of the A51 until the access was clear or drive partly over the highway verge.

7. The provision of an on-line pre-booking system, with instructions, and a 15-minute buffer between appointments, which could be conditioned, seeks to manage the movement of vehicles so the previous customer has already left before the next customer arrives.
8. However, there is no compelling evidence before me that the time frame of this buffer would be sufficient, taking into account people arriving early and leaving late due to, for example, misjudging the time required to travel to the site or retrieving, cleaning and drying dogs before being placed into a vehicle.
9. Despite the monitoring of the site by CCTV, a lack of an on-site presence to actively enforce the arrangements means that I am not persuaded that there would not be occasions where an overlap between visitors associated with different bookings on the site would occur. Consequently, there is the real possibility of vehicles entering the site at the same time as others exiting.
10. The stretch of the A51 that the access is located along is relatively straight with no other accesses within the vicinity. Therefore, it is reasonable to expect that vehicles would be driving in a manner that would reflect the speed limit and this was reinforced by my observations of the traffic flow on the A51. For visitors not familiar with the exact location of the access, and in the absence of appropriate signage, vehicles may have to decelerate hastily, resulting in different tracking when entering the site than that shown on the submitted plans.
11. As such, the proposed access arrangement could result in vehicles waiting on the A51 or overriding the adjoining highway verge, resulting in the potential for conflict between highway users as well as mud and debris ending up on the highway. Consequently, on the evidence presented, and even with a driver exercising caution when using the access, I cannot conclude with reasonable certainty that the development would not represent a hazard to highway users.
12. Although I noted 2 low yellow poles and a number of small orange flags around the access, these were not particularly prominent and did not sway me away from my findings or provide a suitable warning for the location of the site's entrance.
13. My attention has been drawn to an approval¹ for a similar proposal, and the differences with the appeal scheme, including a narrower access width, a greater number of dog walking fields and parking spaces, its positioning on a road with a higher speed limit and a shorter handover period. Moreover, it is also claimed that the approved plans share similarities with the appeal scheme as they do not show wider radii kerbs and the existing access was not approved to be widened.
14. Notwithstanding this, photographic evidence submitted by the Council of that particular site before and after the development shows significant changes to the access, including what appears to be wider radii kerbs. Furthermore, I do not have full details relating to the particular circumstances of that development, including the vehicular movements associated with the site's previous use and the traffic flows and conditions of the highway, and whether the circumstances are comparable to the appeal proposal. As such a comparison is of limited relevance

¹ Planning decision Ref: 22/036826/FUL

in this instance. I have therefore considered the appeal before me on its individual planning merits.

15. For the above reasons, the development has an unacceptable effect on highway safety, contrary to Policy T2 of The Plan for Stafford Borough 2011-2031, which requires, amongst other things, all new development to have safe and adequate means of access and not materially impair highway safety or traffic movement.

Other Matters

16. I recognise that there is a level of support for the appeal scheme, including, but not limited to, the provision of a service and a form of rural diversification. However, these benefits do not overcome the adverse impact on highway safety that I have found and to which I have attributed significant weight.
17. Concerns that the suggested alterations to the access would not be financially viable or sustainable for such a small-scale venture to absorb have not been substantiated and as such I give this matter limited weight in the planning balance.

Planning Balance and Conclusion

18. Given in Policy S3 of the Framework is a presumption in favour of sustainable development. Policy S5 applies as the type of development proposed would be located outside of a settlement. However, policy TR6 of the Framework is clear that development proposals should be refused if they would have an unacceptable impact on highway safety. Applying policy S5 (2), the moderate benefits listed above are significantly outweighed by the adverse effects I have found in terms of highway safety.
19. The appeal scheme conflicts with the development plan as a whole and the material considerations, including the Framework, do not indicate that the appeal should be decided other than in accordance with it. Therefore, the appeal should be dismissed.

P Barton

INSPECTOR